

## 25STCV08111 25STCV08111

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-18

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Case Number: 25STCV08111 Hearing Date: August 18, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 18, 2026

Case Name: Aguilar v. General Motors LLC, et al.

Case No.: 25STCV08111

Matter: Motion for Attorney Fees and Costs

Moving Party: Plaintiff Wendy Aguilar

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a lemon law matter. The parties have settled this matter, and Plaintiff now seeks "\$37,366.90. This amount consists of (1) \$26,184.00 in attorney fees; (2) \$797.70 in costs and expenses; (3) a 0.3 multiplier enhancement on the attorney fees (or

\$7,785.20) and (4) \$2,500 to review the Opposition, prepare a Reply, prepare for and attend the hearing, and close out the file.”

No oppositions were filed.

California courts utilize the lodestar method to determine a reasonable fee award, multiplying the number of hours reasonably expended by a reasonable hourly rate (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). A court may adjust the lodestar figure downward based on factors such as lack of success, inefficiency, or over-litigation (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 92).

The lodestar figure is based on 68.2 hours at attorney hourly rates of \$625 and \$425.

The Court, in the exercise of its discretion, will reduce the lodestar figure by 20% to account for the fact that Ash Reza’s hourly rate is not reasonable and that 68.2 hours is an unreasonably large number of hours to bill for a case with zero docket activity. There was an excessive amount of time spent reviewing GM’s document production and preparing for a PMK deposition.

The Court will not award a multiplier because, among other things, this was not a novel or complex matter.

The Court will not award \$2,500 for reviewing an opposition and drafting a reply; there was no opposition, and the amount billed for the instant Motion is more than sufficient.

The Court will award the requested costs.

In sum, the Motion is granted in part. The Court awards \$20,947.20 in attorney fees and \$797.70 in costs.

Moving party to give notice.